

23STCV27944 23STCV27944

County: los-angeles

Division: Civil Law and Motion

Department: 310

Hearing date: 2026-08-27

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Case Number: 23STCV27944 Hearing Date: August 27, 2026 Dept: 310

Tentative Ruling

Judge Kevin C. Brazile

Department 310

Hearing Date: August 27, 2026

Case Name: Heldman v. Liberty Utilities (Park Water) Corp., et al.

Case No.: 23STCV27944

Matter: Motion to Seal

Ruling: The Motion to Seal is denied without prejudice.

Moving party to give notice.

The Court encourages all parties to appear remotely via LA CourtConnect. If submitting on the Court's tentative ruling, please follow the instructions provided above.

This is an employment action. On November 14, 2023, Plaintiff Franklin Heldman filed the operative Complaint against Defendants Liberty Utilities (Park Water) Corp., Liberty Utilities Services Corp., Liberty Utilities (Apple Valley Ranchos Water) Corp., and Liberty Utilities for (1) whistleblower retaliation, (2) age discrimination, (3) failure to prevent discrimination, (4) wrongful termination, and (5) breach of implied in fact contract.

Plaintiff now seeks to seal Exhibit 6 in support of his motion to compel further responses.

Unless confidentiality is required by law, court records are presumed to be open to public review. (Cal. Rules of Court 2.550(c); see also Cal. Const., art. I, § 3, subd. (b)(1) ["The people have the right of access to information concerning the

conduct of the people's business"].) "The court may order that a record be filed under seal only if it expressly finds facts that establish: (1) There exists an overriding interest that overcomes the right of public access to the record; (2) The overriding interest supports sealing the record; (3) A substantial probability exists that the overriding interest will be prejudiced if the record is not sealed; (4) The proposed sealing is narrowly tailored; and (5) No less restrictive means exist to achieve the overriding interest." (Cal. Rules of Court, rule 2.550(d); see also NBC Subsidiary (KNBC-TV), Inc. v. Superior Court (1999) 20 Cal.4th 1178, 1217-1218.)

Plaintiff failed to explain what overriding interest or harm is at issue, only providing in conclusory fashion that a protective order applies.

Therefore, the Motion is denied without prejudice. In the future, all documents lodged or filed under seal are to be emailed to without any redactions.

Moving party to give notice.